

Opinion of GORSUCH, J.

offered up the essential fifth vote to uphold Mr. Apodaca's conviction—if based only on a view of the Fourteenth Amendment that he knew was (and remains) foreclosed by precedent.

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In the years following *Apodaca*, both Louisiana and Oregon chose to continue allowing nonunanimous verdicts. But their practices have always stood on shaky ground. After all, while Justice Powell's vote secured a favorable judgment for the States in *Apodaca*, it's never been clear what rationale could support a similar result in future cases. Only two possibilities exist: Either the Sixth Amendment allows non-unanimous verdicts, or the Sixth Amendment's guarantee of a jury trial applies with less force to the States under the Fourteenth Amendment. Yet, as we've seen, both bear their problems. In *Apodaca* itself, a majority of Justices—including Justice Powell—recognized that the Sixth Amendment demands unanimity, just as our cases have long said. And this Court's precedents, both then and now, prevent the Court from applying the Sixth Amendment to the States in some mutated and diminished form under the Fourteenth Amendment. So what could we possibly describe as the “holding” of *Apodaca*?

Really, no one has found a way to make sense of it. In later cases, this Court has labeled *Apodaca* an “exception,” “unusual,” and in any event “not an endorsement” of Justice Powell's view of incorporation.³⁴ At the same time, we have continued to recognize the historical need for unanimity.³⁵ We've been studiously ambiguous, even inconsistent, about

³⁴ *McDonald v. Chicago*, 561 U.S. 742, 766, n. 14 (2010); see also *Timbs*, 586 U.S., at 150, n. 1 (quoting *McDonald*, 561 U.S., at 766, n. 14).

³⁵ *Gaudin*, 515 U.S., at 510; *Richardson*, 526 U.S., at 817; *Apprendi*, 530 U.S., at 477; *Southern Union Co.*, 567 U.S., at 356; *Blakely*, 542 U.S., at 301–302; *Booker*, 543 U.S., at 238; *Descamps*, 570 U.S., at 269; *Haymond*, 588 U.S., at 642 (plurality opinion).